

BEFORE THE FEDERAL MARITIME COMMISSION

CARLSTAR GROUP LLC f/k/a)
CARLISLE TRANSPORTATION)
PRODUCTS, INC. and CTP)
TRANSPORTATION PRODUCTS, LLC,)

Complainants

v.

UTi, UNITED STATES, INC.; UTi)
UNITED STATES, LLC; and DSV)
AIR & SEA, INC.)

Respondents

DOCKET NO. 17-08

**COMPLAINANTS' SUPPLEMENTAL MEMORANDUM
IN OPPOSITION TO RESPONDENTS' MOTION TO DISMISS**

Pursuant to the Commission's Order dated January 2, 2018 ("Order"), Complainants The Carlstar Group LLC f/k/a Carlisle Transportation Products, Inc. and CTP Transportation Products, LLC (collectively, "Carlstar"), respectfully submit this supplemental memorandum in opposition to the Motion to Dismiss (the "Motion") filed by Respondents UTi, United States, Inc., UTi United States, LLC, and DSV Air & Sea, Inc. (collectively, "UTi").

ARGUMENT

The Commission's Order noted that it is not clear whether Carlstar contends UTi was operating as non-vessel operating common carrier ("NVOCC") or an ocean freight forwarder on the shipments that were subject to the Carlisle Transportation Products Agreements." (Order at 4.) The Commission's Order therefore directed Carlstar to file supplemental briefing setting forth Carlstar's "contentions regarding the operational status of UTi on the shipments that were subject to the Carlstar Transportation Products Agreement." (*Id.*) It is Carlstar's contention that UTi was

operating as an NVOCC on the shipments that were subject to the Carlisle Transportation Products Agreement. Indeed, Carlstar would not have understood this point to be in dispute.

The Order further directed Carlstar to include responses to two (2) questions. First, the Order directed Carlstar to answer the following question: “Did UTi issue its own bills of lading on the shipments subject to the Carlisle Transportation Products Agreement”? (Order at 5.) Carlstar answers this question in the affirmative. Pursuant to the Order, Carlstar attaches as Exhibit A a representative sample of bills of lading that UTi issued to Carlstar on the shipments that were subject to the Carlisle Transportation Products Agreement. Second, the Order directed Carlstar to answer the following question: “Did vessel-operating common carriers or other NVOCCs issue bills identifying UTi as the shipper on the shipments subject to the Carlisle Transportation Products Agreement”? (Order at 5.) Carlstar likewise answers this question in the affirmative. Pursuant to the Order, Carlstar attaches as Exhibit B a representative sample of a carrier-issued bill of lading and carrier-issued invoices identifying UTi as the shipper.

CONCLUSION AND RELIEF REQUESTED

For the additional reasons set forth above, Carlstar respectfully requests that the Commission deny UTi’s Motion to Dismiss.

Respectfully submitted this 17th day of January, 2018.

/s/ Derek H. Swanson

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Facsimile: (202) 828-2963
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Attorneys for The Carlstar Group LLC

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing documents upon all parties noted below by mailing via electronic mail a copy to each such person:

Ashley W. Craig
Wesley S. Sudduth
Neha Dhindsa
Venable LLP
600 Massachusetts Avenue, NW
Washington, DC 20001
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ndhindsa@venable.com

Counsel for Respondents

Dated at Richmond, VA, this 17th day of January, 2018.

EXHIBIT A

COMBINED TRANSPORT BILL OF LADING

Consignor CARLISLE (MEIZHOU) RUBBER MANUFACTURING CO., LTD YANYANG TOWN, MEIXIAN, MEIZHOU CITY GUANGDONG PROVINCE, CHINA TEL: 0753-2826222/543 FAX: 0753-2826543		B/L No. 5861176692	
Consigned to order of CARLISLE TRANSPORTATION PRODUCTS 493 WESTRIDGE PARKWAY MCDONOUGH, GA 30253 CONTACT: LAURA FRYE TEL: 937-847-1533		Shipper's Reference 9402254/1-8 & 94043056/1-2 Forwarder's Reference Conso1 No: C00833245	
Notify address SCARBROUGH INTERNATIONAL, LTD. 10841 AMBASSADOR DRIVE KANSAS CITY, MISSOURI 64153 ATTN: DOUG FERRELL TEL: 816-584-2405 FAX: 816-584-2505		EXPRESS NEGOTIABLE COMBINED TRANSPORT BILL OF LADING	
Container Number ZIM ONTARIO / 021E		Place of Receipt MEIZHOU, CHINA	
Ocean Vessel ZIM ONTARIO / 021E		Port of Loading DA CHAN BAY, CHINA	
Port of Discharge SAVANNAH, GA		Place of Delivery MCDONOUGH, GA	
Marks and Numbers N/M		Number and Kind of Packages 1 x 40GP CONTAINER 9 x 40HC CONTAINER 8999 Package(s) TIRE THIS SHIPMENT CONTAINS NO WOOD PACKAGING MATERIAL LOADING NUMBER: MZ201301882/1884/1885/1886/1887/1889/1890/1892/ 1896/1899	
Description of Goods Gross Weight 154950.000 K 518,000 M3		Measurement 154950.000 K 518,000 M3	
Container CPSU4714987 CPSU6415141 FSCU6433500 GATU8105563 GATU8800014 GESU5654499 HLXU6567420 HLXU6571631 HLXU8039778 TTNU9681536	Seals AHL5894160 AHL5842822 AHL5895127 AHL5842819 AHL5893141 AHL5842821 AHL5893140 AHL5893057 AHL5842820 AHL5893139	Type 40GP 40HC 40HC 40HC 40HC 40HC 40HC 40HC 40HC 40HC 40HC	weight(kg) 15260.000 16890.000 14450.000 17010.000 13720.000 14790.000 13720.000 16340.000 19480.000 13290.000
Volume(M3) 50.000 52.000 52.000 52.000 52.000 52.000 52.000 52.000 52.000 52.000	Packages 921 PKG 1380 PKG 836 PKG 1212 BAL 850 PCE 843 PKG 850 PCE 847 PKG 820 BAL 440 PKG	Mode Door/Door Door/Door Door/Door Door/Door Door/Door Door/Door Door/Door Door/Door Door/Door Door/Door	
SHIPPED ON BOARD 24-Aug-13 FREIGHT COLLECT according to the declaration of the consignee			
The goods and instructions are accepted and dealt with subject to the Standard Conditions printed overleaf. Taken in charge in apparent good order and condition, unless otherwise noted herein, at the place of receipt for transport and delivery as mentioned above. UTI United States, Inc. has a policy against payment solicitation, or receipt of any rebate, directly or indirectly, which would be unlawful under the US Shipping Act of 1916 as amended. One of these Combined Transport Bills of Lading must be surrendered duly endorsed in exchange for the goods. In Witness whereof the original Combined Transport Bills of Lading all of this tenor and date have been signed in the number stated below, one of which being accomplished the other(s) to be void.			
Freight Amount AS ARRANGED		Freight Payable at DESTINATION	
Cargo Insurance through the undersigned ☐ not covered ☐ covered according to attached policy		Number of Original BL's 0 (ZERO)	
For delivery of goods please apply to UTI, UNITED STATES, INC 3800 ARCO CORPORATE DRIVE SUITE 550 CHARLOTTE NC 28273 UNITED STATES		Place and date of issue: Stamp and signature SHENZHEN, CHINA 24/08/13 UTI (CHINA) LTD SZX BRANCH	
PH: 1 704 3579722		FAX: 1 704 3579717	
As Carrier		Authorized Signature(s)	

COMBINED TRANSPORT BILL OF LADING

Consignor CARLISLE (MEIZHOU) RUBBER MANUFACTURING CO., LTD YANYANG TOWN, MEIXIAN, MEIZHOU CITY GUANGDONG PROVINCE, CHINA TEL: 0753-2826222/543 FAX: 0753-2826543	
Consigned to order of CARLISLE TRANSPORTATION PRODUCTS 493 WESTRIDGE PARKWAY MCDONOUGH, GA 30253 CONTACT: LAURA FRYE TEL: 937-847-1533	
Notify address SCARBROUGH INTERNATIONAL, LTD. 10841 AMBASSADOR DRIVE KANSAS CITY, MISSOURI 64153 ATTN: DOUG FERRELL TEL: 816-584-2405 FAX: 816-584-2505	
Container Number	Place of Receipt
	MEIZHOU, CHINA
Ocean Vessel	Port of Loading
CMA CGM DALILA / US897S	YANTIAN, CHINA
Port of Discharge	Place of Delivery
SAVANNAH, GA	MCDONOUGH, GA

B/L No.
5861180417
Shipper's Reference
GGZ0541862
Forwarder's Reference
Conso1 No: C00835910

EXPRESS

 NEGOTIABLE
 COMBINED TRANSPORT
 BILL OF LADING

 DIVISION OF UTI, United States, Inc.
 FMC 1792 NF

Marks and Numbers	Number and Kind of Packages	Description of Goods	Gross Weight	Measurement
N/M	3 x 40HC CONTAINER 2738 Package(s) TIRE		47100.000 KG	156.000 M3
THIS SHIPMENT CONTAINS NO WOOD PACKAGING MATERIAL LOADING NUMBER: MZ201302006/2014/2020				
Container APHU7205842 CHAU5234900 UESU5152241	Seals 87685452 89028057 87685557	Type 40HC 40HC 40HC	Weight(KG) 16910.000 17440.000 12750.000	Volume(M3) 52.000 52.000 52.000
		Packages 1210 PKG 1047 PKG 481 PKG	Mode Door/Door Door/Door Door/Door	

 SHIPPED ON BOARD 05-Sep-13
 FREIGHT COLLECT according to the declaration of the consignor

The goods and instructions are accepted and dealt with subject to the Standard Conditions printed overleaf.

Taken in charge in apparent good order and condition, unless otherwise noted herein, at the place of receipt for transport and delivery as mentioned above, UTI United States, Inc. has a policy against payment solicitation, or receipt of any rebate, directly or indirectly, which would be unlawful under the US Shipping Act of 1916 as amended.

One of these Combined Transport Bills of Lading must be surrendered duly endorsed in exchange for the goods. In Witness whereof the original Combined Transport Bill of Lading all of this tenor and date have been signed in the number stated below, one of which being accomplished the other(s) to be void.

Freight Amount	Freight Payable at	Place and date of issue: Stamp and signature
AS ARRANGED	DESTINATION	SHENZHEN, CHINA 5/09/13
Cargo Insurance through the undersigned	Number of Original BL's	UTI (CHINA) LTD SZX BRANCH
☐ Not covered ☐ Covered according to attached policy	0 (ZERO)	
For delivery of goods please apply to UTI, UNITED STATES, INC 3800 ARCO CORPORATE DRIVE SUITE 550 CHARLOTTE NC 28273 UNITED STATES		
PH: 1 704 3579722 FAX: 1 704 3579717		As Carrier Authorized Signature(s)

2014

NON-NEGOTIABLE COMBINED TRANSPORT BILL OF LADING

Issued subject to ICC Uniform Rules of combined Transport document (ICC publication 491)

SHIPPER

CARLISLE (MEIZHOU) RUBBER MANUFACTURING CO LTD
YANYANG TOWN MEIXIAN
MEIZHOU CITY GUANGDONG PROVINCE CHINA
MEIZHOU 44 CN 514000

CONSIGNEE (if To Order to Indicate)

Ctp Transportation Products, LLC
493 WESTRIDGE PKY
MCDONOUGH GA 30253

Phone:
Fax:

NOTIFY PARTY (the claim shall attach for failure to notify)

SCARBROUGH
10841 AMBASSADOR DR
KANSAS CITY MO US 64153

BILL OF LADING NUMBER

108942621

CARRIER REFERENCE

95232488/1-10

SERVICE

DOOR/DOOR

CLIENT REFERENCE

PAGE:

1 of 4



UTI, UNITED STATES, INC.
100 OCEANGATE, STE 1500
LONG BEACH, CALIFORNIA
90802-4347
UNITED STATES
Tel: +1 562-552-9400
Fax: +1 562-552-9401
FMC 1792

INSURED VALUE NVD		NO. OF COPIES	NO. OF ORIGINALS 0 (Zero)
PORT OF LOADING YANTIAN CN	PLACE OF RECEIPT MEIZHOU CN	VALUE FOR CUSTOMS NCV	CONSOLIDATION NUMBER CCN00230933
PORT OF DISCHARGE SAVANNAH US	PLACE OF DELIVERY MCDONOUGH US	DECLARED CARGO VALUE NVD	FREIGHT PAYABLE AT OTHER
VESSEL / VOYAGE / IMO (LLOYDS) KAETHE P/010E/		QUANTITY COUNT 9735	WEIGHT 150910 KG VOLUME 520
MARKS & NUMBERS	NUMBER AND KIND OF PACKAGES / DESCRIPTION OF GOODS	WEIGHT	MEASUREMENT
CLHU8955087 SEAL:HLB0326381 N/M	1 X 40 Foot High Cube Dry Container 1120 PACKAGE TIRE THIS SHIPMENT CONTAINS NO WOOD PACKAGING MATERIAL LOADING NUMBER: MZ201402275/2276/2277/2278/2280/2281/2282 /2285/2288/2291	13420 KG	52 M3

SPECIAL INSTRUCTIONS

SHIPPED ON BOARD DATE: 2014-10-13

NRA: TBD1400000

FOR DELIVERY OF GOODS PLEASE APPLY TO:

UTI, United States Inc.
3717 Wilson Road, Suite 100
ATLANTA GA US 30354

CHARGES
AS AGREED

PREPAID
AS AGREED

COLLECT
AS AGREED

Phone:
Fax:

SIGNED AND ISSUED AS AGENT FOR UTI AS CARRIER BY:

PLACE AND DATE OF ISSUE: SHENZHEN CITY CN 13-Oct-2014

2014

NON-NEGOTIABLE COMBINED TRANSPORT BILL OF LADING

Issued subject to ICC Uniform Rules of Combined Transport document (ICC publication 491)

SHIPPER

CARLISLE (MEIZHOU) RUBBER MANUFACTURING CO LTD
YANYANG TOWN MEIXIAN
MEIZHOU CITY GUANGDONG PROVINCE CHINA
514000, MEIZHOU CN

CONSIGNEE (if To Order so indicate)

Cop Transportation
Products, LLC
493 WEBSTRIDGE PARKWAY
MCDONOUGH, GA 30253

Phone: 562-547-1833

Fax:

NOTIFY PARTY (no claim shall attach for failure to notify)

SCARBROUGH
10841 AMBASSADOR DR
KANSAS CITY, MO 64153 US

BILL OF LADING NUMBER

109431744

CARRIER REFERENCE

GQZ0621818/GQZ0625000

SERVICE

DOOR/DOOR

CLIENT REFERENCE

PAGE:

1 OF 4



UTI, UNITED STATES, INC.
100 OCEANGATE, STE 1900
LONG BEACH, CALIFORNIA
90802-4947
UNITED STATES
Tel: +1 562-552-9400
Fax: +1 562-552-9401
FMC 1792

INSURED VALUE NVD		NO. OF COPIES	NO. OF ORIGINALS 0 (Zero)
PORT OF LOADING YANTIAN CN	PLACE OF RECEIPT MEIZHOU CN	VALUE FOR CUSTOMS NVD	CONSOLIDATION NUMBER COND0240552
PORT OF DISCHARGE SAVANNAH US	PLACE OF DELIVERY MCDONOUGH US	DECLARED CARGO VALUE NVD	FREIGHT PAYABLE AT OTHER
VESSEL / VOYAGE / IMO (LOYDS) CHA CGM ATTILA /USB378/		MARKS & NUMBERS CMAU858784 SEAL: D2071813 N/M	NUMBER AND KIND OF PACKAGES / DESCRIPTION OF GOODS 1 X 40 Foot High Cube Dry Container 493 PACKAGE TIRE THIS SHIPMENT CONTAINS NO WOOD PACKAGING MATERIAL LOADING NUMBER: MK201402446/2451/2454/2461/2463/2466/2471 /2480/2482/2483/2486/2488
		COUNT 8504	WEIGHT 161920 KG
		VOLUME 624	MEASUREMENT 52 M3

SPECIAL INSTRUCTIONS

SHIPPED ON BOARD DATE: 2014-10-31

NRA: TBD1400000

FOR DELIVERY OF GOODS PLEASE APPLY TO:

UTI, United States Inc.
3717 Wilson Road, Suite 150
ATLANTA, GA 30324 US

CHARGES

PREPAID

COLLECT

1057

113.91 USD

Phone:

Fax:

SIGNED AND ISSUED AS AGENT FOR UTI AS CARRIER BY:

PLACE AND DATE OF ISSUE SHENZHEN CITY CN 31-Oct-2014

NON-NEGOTIABLE COMBINED TRANSPORT BILL OF LADING

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SHIPPER CARLISLE (MEIZHOU) RUBBER MANUFACTURING CO LTD YANYANG TOWN MEIXIAN MEIZHOU CITY GUANGDONG PROVINCE CHINA 514000, MEIZHOU CN Phone: Fax:		BILL OF LADING NUMBER 115002296 CARRIER REFERENCE GGZ0659921 SERVICE DOOR/DOOR CLIENT REFERENCE																
CONSIGNEE (if To Order, so indicate) The Carlstar Group LLC 493 WESTRIDGE PARKWAY MCDONOUGH, GA 30253 Phone: +1 913 6671013 Fax: +1 913 6671099		PAGE: 1 of 5  UTI, UNITED STATES, INC. 100 OCEANGATE, STE 1500 LONG BEACH, CALIFORNIA 90802-4347 UNITED STATES Tel: +1 562-552-9400 Fax: +1 562-552-9401 FMC 1792																
NOTIFY PARTY (No claim shall attach for failure to notify) SCARBROUGH 10841 AMBASSADOR DR KANSAS CITY US 64153 Phone: +1 816 8912400 Fax: +1 816 8917625		<table border="1"> <tr> <td>INSURED VALUE NVD</td> <td>NO. OF COPIES</td> <td>NO. OF ORIGINALS 0 (Zero)</td> </tr> <tr> <td>VALUE FOR CUSTOMS NCV</td> <td colspan="2">CONSOLIDATION NUMBER OCN00371203</td> </tr> <tr> <td>DECLARED CARGO VALUE NVD</td> <td colspan="2">FREIGHT PAYABLE AT OTHER</td> </tr> <tr> <td>TOTAL</td> <td>COUNT 16245</td> <td>WEIGHT 264510 KG</td> </tr> <tr> <td></td> <td></td> <td>VOLUME 884</td> </tr> </table>		INSURED VALUE NVD	NO. OF COPIES	NO. OF ORIGINALS 0 (Zero)	VALUE FOR CUSTOMS NCV	CONSOLIDATION NUMBER OCN00371203		DECLARED CARGO VALUE NVD	FREIGHT PAYABLE AT OTHER		TOTAL	COUNT 16245	WEIGHT 264510 KG			VOLUME 884
INSURED VALUE NVD	NO. OF COPIES	NO. OF ORIGINALS 0 (Zero)																
VALUE FOR CUSTOMS NCV	CONSOLIDATION NUMBER OCN00371203																	
DECLARED CARGO VALUE NVD	FREIGHT PAYABLE AT OTHER																	
TOTAL	COUNT 16245	WEIGHT 264510 KG																
		VOLUME 884																
PORT OF LOADING YANTIAN CN	PLACE OF RECEIPT MEIZHOU CN																	
PORT OF DISCHARGE SAVANNAH US	PLACE OF DELIVERY MCDONOUGH US																	
VESSEL / VOYAGE / IMO (LLOYDS) CMA CGM LA SCALA/009USS/																		
MARKS & NUMBERS	NUMBER AND KIND OF PACKAGES / DESCRIPTION OF GOODS	WEIGHT	MEASUREMENT															
CMAU4740484 SEAL:D5829676 N/M	1 X 40 Foot High Cube Dry Container 1263 PACKAGE TIRE THIS SHIPMENT CONTAINS NO WOOD PACKAGING MATERIAL LOADING NUMBER:MZ201501373/1374/1375/1377/1381//1382/138 3/1384/1387/1389/1392/1393/1394/1399/1402/1406/1 407	17150 KG	52 M3															
SPECIAL INSTRUCTIONS																		
SHIPPED ON BOARD DATE: 2015-06-01 SHIPPER'S LOAD, COUNT & SEAL NRA: EWR1407002 FOR DELIVERY OF GOODS PLEASE APPLY TO: UTI, United States Inc. 3717 Wilson Road, Suite 100 ATLANTA, GA 30354 US Phone: Fax:																		
SIGNED AND ISSUED AS AGENT FOR UTI AS CARRIER BY: 		CHARGES AS AGREED	PREPAID AS AGREED															
		COLLECT AS AGREED																
PLACE AND DATE OF ISSUE SHENZHEN CITY CN 01-Jun-2015																		

NON-NEGOTIABLE COMBINED TRANSPORT BILL OF LADING

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BILL OF LADING NUMBER
115002296
CARRIER REFERENCE
GGZ0659921
SERVICE
DOOR/DOOR
CLIENT REFERENCE

PAGE: 2 of 5

MARKS & NUMBERS	NUMBER AND KIND OF PACKAGES / DESCRIPTION OF GOODS	WEIGHT	MEASUREMENT
SEGU5345088 SEAL:D9161514	1 X 40 Foot High Cube Dry Container 1426 PACKAGE TIRE & BLADDER	15980 KG	52 M3
CMAU4717099 SEAL:DS829639	1 X 40 Foot High Cube Dry Container 760 PACKAGE TIRE	13150 KG	52 M3
TRLU6647898 SEAL:D9154502	1 X 40 Foot High Cube Dry Container 1100 PIECE TIRE	13530 KG	52 M3
CMAU4865481 SEAL:B6690264	1 X 40 Foot High Cube Dry Container 570 BALE TIRE	13840 KG	52 M3

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SERVICE
DOOR/DOOR
CLIENT REFERENCE

PAGE: 3 of 5

MARKS & NUMBERS	NUMBER AND KIND OF PACKAGES / DESCRIPTION OF GOODS	WEIGHT	MEASUREMENT
CMAU4744957 SEAL:D5829673	1 X 40 Foot High Cube Dry Container 773 PACKAGE TIRE	16040 KG	52 M3
CMAU4808748 SEAL:D5832979	1 X 40 Foot High Cube Dry Container 1120 PACKAGE TIRE	14140 KG	52 M3
CMAU4808624 SEAL:D5832973	1 X 40 Foot High Cube Dry Container 953 PACKAGE TIRE	16590 KG	52 M3
INKU2222061 SEAL:D9154648	1 X 40 Foot High Cube Dry Container 810 BALE TIRE	19360 KG	52 M3

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CLIENT REFERENCE

PAGE: 4 of 5

MARKS & NUMBERS	NUMBER AND KIND OF PACKAGES / DESCRIPTION OF GOODS	WEIGHT	MEASUREMENT
CMAU4740519 SEAL:D5829680	1 X 40 Foot High Cube Dry Container 577 BALE TIRE	14640 KG	52 M3
CMAU4808584 SEAL:D5832978	1 X 40 Foot High Cube Dry Container 624 BALE TIRE	14540 KG	52 M3
CMAU4721308 SEAL:D5829720	1 X 40 Foot High Cube Dry Container 1110 PACKAGE TIRE	18610 KG	52 M3
CMAU4808706 SEAL:D5832980	1 X 40 Foot High Cube Dry Container 1041 PACKAGE TIRE	17960 KG	52 M3

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CARRIER REFERENCE
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SERVICE
DOOR/DOOR
CLIENT REFERENCE

PAGE: 5 of 5

MARKS & NUMBERS	NUMBER AND KIND OF PACKAGES / DESCRIPTION OF GOODS	WEIGHT	MEASUREMENT
ECMU9048682 SEAL:D9161573	1 X 40 Foot High Cube Dry Container 1019 PACKAGE TIRE	15790 KG	52 M3
CMAU4733150 SEAL:D5829695	1 X 40 Foot High Cube Dry Container 1286 PACKAGE TIRE	15650 KG	52 M3
CMAU4865671 SEAL:D6690262	1 X 40 Foot High Cube Dry Container 770 PIECE TIRE	12760 KG	52 M3
CMAU4728133 SEAL:D5829656	1 X 40 Foot High Cube Dry Container 1043 PACKAGE TIRE	14780 KG	52 M3

NON-NEGOTIABLE COMBINED TRANSPORT BILL OF LADING

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SHIPPER CARLISLE (MEIZHOU) RUBBER MANUFACTURING CO LTD YANYANG TOWN MEIXIAN MEIZHOU CITY GUANGDONG PROVINCE CHINA 514000, MEIZHOU CN Phone: Fax:		BILL OF LADING NUMBER 115002381 CARRIER REFERENCE GG20661204 SERVICE DOOR/DOOR CLIENT REFERENCE																
CONSIGNEE (if 'To Order' so indicate) The Carlstar Group LLC 493 WESTRIDGE PARKWAY MCDONOUGH, GA 30253 Phone: +1 913 6671013 Fax: +1 913 6671099		PAGE: 1 of 5  UTI, UNITED STATES, INC. 100 OCEANGATE, STE 1500 LONG BEACH, CALIFORNIA 90802-4347 UNITED STATES Tel: +1 562-552-9400 Fax: +1 562-552-9401 FMC 1792																
NOTIFY PARTY (No claim shall attach for failure to notify) SCARBROUGH 10841 AMBASSADOR DR KANSAS CITY US 64153 Phone: +1 816 8912400 Fax: +1 816 8917625		<table border="1"> <tr> <td>INSURED VALUE NVD</td> <td>NO. OF COPIES</td> <td>NO. OF ORIGINALS 0 (Zero)</td> </tr> <tr> <td>VALUE FOR CUSTOMS NCV</td> <td colspan="2">CONSOLIDATION NUMBER OCN00377607</td> </tr> <tr> <td>DECLARED CARGO VALUE NVD</td> <td colspan="2">FREIGHT PAYABLE AT OTHER</td> </tr> <tr> <td>TOTAL</td> <td>COUNT 14920</td> <td>WEIGHT 230400 KG</td> </tr> <tr> <td></td> <td></td> <td>VOLUME 780</td> </tr> </table>		INSURED VALUE NVD	NO. OF COPIES	NO. OF ORIGINALS 0 (Zero)	VALUE FOR CUSTOMS NCV	CONSOLIDATION NUMBER OCN00377607		DECLARED CARGO VALUE NVD	FREIGHT PAYABLE AT OTHER		TOTAL	COUNT 14920	WEIGHT 230400 KG			VOLUME 780
INSURED VALUE NVD	NO. OF COPIES	NO. OF ORIGINALS 0 (Zero)																
VALUE FOR CUSTOMS NCV	CONSOLIDATION NUMBER OCN00377607																	
DECLARED CARGO VALUE NVD	FREIGHT PAYABLE AT OTHER																	
TOTAL	COUNT 14920	WEIGHT 230400 KG																
		VOLUME 780																
PORT OF LOADING YANTIAN CN	PLACE OF RECEIPT MEIZHOU CN																	
PORT OF DISCHARGE SAVANNAH US	PLACE OF DELIVERY MCDONOUGH US																	
VESSEL / VOYAGE / IMO (LLOYDS) CMA CGM FIGARO / 013UUS/																		
MARKS & NUMBERS	NUMBER AND KIND OF PACKAGES / DESCRIPTION OF GOODS	WEIGHT	MEASUREMENT															
ECMU9629840 SEAL:D9157970 N/M	1 X 40 Foot High Cube Dry Container 1336 PACKAGE TIRE THIS SHIPMENT CONTAINS NO WOOD PACKAGING MATERIAL LOADING NUMBER:MZ201501456/1457/1458/1463/1465/1466/1467 /1469/1472/1482/1484/1487/1490/1492/1496/1498	16000 KG	52 M3															
SPECIAL INSTRUCTIONS																		
SHIPPED ON BOARD DATE: 2015-06-08 SHIPPER'S LOAD, COUNT & SEAL NRA: ENR1407002																		
FOR DELIVERY OF GOODS PLEASE APPLY TO:		CHARGES	PREPAID															
UTI, United States Inc. 3717 Wilson Road, Suite 100 ATLANTA, GA 30354 US Phone: Fax:		AS AGREED	AS AGREED															
SIGNED AND ISSUED AS AGENT FOR UTI AS CARRIER BY:		COLLECT AS AGREED																
PLACE AND DATE OF ISSUE SHENZHEN CITY CN 08-Jun-2015																		

NON-NEGOTIABLE COMBINED TRANSPORT BILL OF LADING

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BILL OF LADING NUMBER
115002381
CARRIER REFERENCE
GGZ0661204
SERVICE
DOOR/DOOR
CLIENT REFERENCE

PAGE: 2 of 5

MARKS & NUMBERS	NUMBER AND KIND OF PACKAGES / DESCRIPTION OF GOODS	WEIGHT	MEASUREMENT
GVC05221110 SEAL:D9162183	1 X 40 Foot High Cube Dry Container 1091 BALE TIRE	17680 KG	52 M3
TGH09516572 SEAL:D9162073	1 X 40 Foot High Cube Dry Container 1131 PACKAGE TIRE	15790 KG	52 M3
TEMU6462320 SEAL:D9159927	1 X 40 Foot High Cube Dry Container 667 PACKAGE TIRE	13610 KG	52 M3
INKU6126404 SEAL:D9159921	1 X 40 Foot High Cube Dry Container 1144 PACKAGE TIRE	14340 KG	52 M3

NON-NEGOTIABLE COMBINED TRANSPORT BILL OF LADING

Issued subject to ICC Uniform Rules of combined Transport document (ICC publication 491)

BILL OF LADING NUMBER
115002383
CARRIER REFERENCE
GG20661204
SERVICE
DOOR/DOOR
CLIENT REFERENCE

PAGE: 3 of 5

MARKS & NUMBERS	NUMBER AND KIND OF PACKAGES / DESCRIPTION OF GOODS	WEIGHT	MEASUREMENT
ECMU9663423 SEAL:D9162248	1 X 40 Foot High Cube Dry Container 708 BALE TIRE	14230 KG	52 M3
CAIU9365700 SEAL:B2411894	1 X 40 Foot High Cube Dry Container 1165 PACKAGE TIRE	14010 KG	52 M3
BMOU5651542 SEAL:D9162106	1 X 40 Foot High Cube Dry Container 961 PACKAGE TIRE	15440 KG	52 M3
TCNU8005339 SEAL:B2411991	1 X 40 Foot High Cube Dry Container 1020 PACKAGE TIRE	16770 KG	52 M3

NON-NEGOTIABLE COMBINED TRANSPORT BILL OF LADING

Issued subject to ICC Uniform Rules of combined Transport document (ICC publication 491)

BILL OF LADING NUMBER
115002381
CARRIER REFERENCE
GGZ0661204
SERVICE
DOOR/DOOR
CLIENT REFERENCE

PAGE: 4 of 5

MARKS & NUMBERS	NUMBER AND KIND OF PACKAGES / DESCRIPTION OF GOODS	WEIGHT	MEASUREMENT
INKU6091680 SEAL:B2411996	1 X 40 Foot High Cube Dry Container 836 PACKAGE TIRE	15020 KG	52 M3
CAIU9666324 SEAL:B2411899	1 X 40 Foot High Cube Dry Container 979 PACKAGE TIRE	18630 KG	52 M3
GESU4488032 SEAL:B2411993	1 X 40 Foot High Cube Dry Container 850 PIECE TIRE	13090 KG	52 M3
ECMU9567878 SEAL:B6690358	1 X 40 Foot High Cube Dry Container 1050 PACKAGE TIRE	17340 KG	52 M3

NON-NEGOTIABLE COMBINED TRANSPORT BILL OF LADING

Issued subject to ICC Uniform Rules of combined Transport document (ICC publication 491)

BILL OF LADING NUMBER
115002381
CARRIER REFERENCE
GGZ0661204
SERVICE
DOOR/DOOR
CLIENT REFERENCE

PAGE: 5 of 5

MARKS & NUMBERS	NUMBER AND KIND OF PACKAGES / DESCRIPTION OF GOODS	WEIGHT	MEASUREMENT
ECMU9576904 SEAL:B2411995	1 X 40 Foot High Cube Dry Container 714 PACKAGE TIRE	12640 KG	52 M3
INKU2644621 SEAL:D9154110	1 X 40 Foot High Cube Dry Container 1268 PACKAGE TIRE	15810 KG	52 M3

EXHIBIT B

CONTACT INFO		
Type	Name	Address
CONSIGNEE	UTI, UNITED STATES, INC	3800 ARCO CORPORATE DRIVE SUITE 550 CHARLOTTE NC 2827
NOTIFY PARTY	UTI, UNITED STATES, INC	3800 ARCO CORPORATE DRIVE SUITE 550 CHARLOTTE NC 2827
SHIPPER	UTI (CHINA) LIMITED NO.268	WUSONG ROAD SHANGHAI 31 200080 CHINA

PRODUCT DETAILS	
Container No.	Description Area
UESU4321250	VARIOUS SIZE OF INNER TUBES A/C:CARLISLE TIRE WHEEL CO S/C:13-1003 B 8 O/F:USD 7,120.00
ECMU4474263	VARIOUS SIZE OF INNER TUBES A/C:CARLISLE TIRE WHEEL CO S/C:13-1003 B 8 O/F:USD 7,120.00

TRANSIT DETAILS	
Property	Value
CARRIER	CMDU - COMPAGNIE MARITIME D-AFFRETEMENT
ADDRESS	5701 LAKE WRIGHT DR NORFOLK VA, 23502
	CONTACT NO.: 7573051701
SHIP REGISTERED IN	UNITED KINGDOM
VESSEL	CMA CGM LA SCALA
VOYAGE	US930
US PORT	SAVANNAH, GEORGIA
FOREIGN PORT	SHANGHAI
COUNTRY OF ORIGIN	CHINA
PLACE OF RECEIPT	SHANGHAI
BILL OF LADING	CMDUCNOM169161
ARRIVAL DATE	2013-12-05
QUANTITY	3487 PCS

CONTAINER COUNT	2
WEIGHT (LB / KG)	101,171 / 45,987
CBM	1 CM
HOUSE VS MASTER	M
IN-BOND ENTRY TYPE	61 - IMMEDIATE TRANSPORTATION

OTHER INFO	
Container No.	Marks and Numbers Area
UESU4321250	N/M
ECMU4474263	N/M

RELATED B/L	
Type (House/Master)	B / L
H	UNPC5861206526

CMA CGM (CANADA) INC
740 NOTRE DAME STREET WEST
SUITE 1330
MONTREAL/H3C 3X6
CANADA
TEL: FAX:



Please use B/L number as reference with payment

Bill of Lading: CNOM188175 Booking Ref: CNOM188175

Customer: 0000066595/001

Your Ref: -

INVOICE

CAIM0229677

COPY 1 OF 1

Date: 04-APR-2014

Invoice To: UTI UNITED STATES INC
5255 PAYSPHERE CIRCLE
CHICAGO--IL--60674
UNITED STATES

Payable to: CMA CGM (CANADA) INC
740 NOTRE DAME STREET WEST
SUITE 1330
MONTREAL/H3C 3X6
CANADA
TEL: FAX:

VAT NO.: US00000

For disputed invoices please contact cda.disputes@usa.cma-cgm.com

Invoiced By: Linda Assaf Tel: 514-908-7029

Voyage: US972W Local Voyage Ref: - Vessel: CMA CGM BIANCA

Call Date: 06 APR 2014

Place of Receipt: -

Discharge Port: VANCOUVER, BC

Load Port: SHANGHAI

Place of Delivery: TROY, MI

Shipper: UTI (CHINA) LIMITED NO.268,WUSONG

Notify: UTI, UNITED STATES, INC
UNITED STATES***

Consignee: UTI, UNITED STATES, INC
UNITED STATES**

Notify 2:

Commodity Code	Description	Package	Qty			
401310	Inner tubes, of rubber, of a k	20ST	1			
Container Number(s): CMAU0323266						
Size/Type	Charge Description	Based on	Rate Currency	Amount	Amount in USD	
20ST C	BASIC FREIGHT	1 UNI	3,021.00 USD	3,021.00	3,021.00	
20ST C	Bunker surcharge NOS	1 UNI	420.00 USD	420.00	420.00	
20ST C	Terminal handl. ch destination	1 UNI	500.00 USD	500.00	500.00	
20ST C	Export Declaration Surcharge	1 FIX	30.00 USD	30.00	30.00	
Rate of Exchange			Currency Charge Totals			
			USD	3,971.00		
					Total	3,971.00

(C)For and on behalf of CMA - CGM
4 Quai d'Arenç
13002 MARSEILLE-FRANCE
FR72562024422

Carrier No. CACMA0419304

UID#055253 ABA#021000021 SWIFT: ROYCCAT2
BENEFICIARY: CMA CGM & ANL (CANADA) SEC.
By CMA CGM (CANADA) INC.
ROYAL BANK OF CANADA
1 PLACE VILLE MARIE
MONTREAL
H3C 3B5 CANADA QC
Account Number.4011672 (USD)

Total Amount:

3,971.00 USD

Payable by 06-APR-2014

Payment before delivery of Bill Of Lading (Export) or containers (Import)

Our invoices are payable in full to CMA CGM by the indicated due date, without any deduction, including for payments made in advance. Penalties for late payments are 0.75% per month pro rata

Hapag-Lloyd (America) Inc.399 Hoes Lane
Piscataway, New Jersey 08854**ORIGINAL**

Hapag-Lloyd (America) Inc. - 399 Hoes Lane - Piscataway - New Jersey 08854, USA

UTI, UNITED STATES, INC.
CHARLOTTE, NC, USA
3800 ARCO CORPORATION DRIVE
SUITE 550
CHARLOTTE, NC 28273
USAISSUING AGENT:
HAPAG-LLOYD (AMERICA) INC.
245 TOWNPARK DR.
SUITE 300
KENNESAW, GA 30144
USA

I N V O I C E NO.:

20987988

PAGE 1 / 2
FEB. 26, 2014

CUSTOMER : 50610362

SWB-NO. HLCUATL140217314

SHIPMENT 10898267 FCL/FCL
YORKTOWN EXPRESS 13E06/073437

SAILING FEB. 25, 2014

FROM SPRINGFIELD US VIA NORFOLK US VIA BREMERHAVEN DE
TO PELHRIMOV CZ

SEC.MANIF.DOCUMENT 30.00 USD 1 BIL 30.00 USD

01 CONT. 20' X 8'6" GENERAL PURPOSE CONT.
HLXU 1131901

SULPHUR FUEL SURCH	25.00 USD	1 CTR	25.00 USD
BUNKER CHARGE	297.00 USD	1 CTR	297.00 USD
TMNL SECURITY DEST	9.00 EUR	1 CTR	12.36 USD
THC DESTINATION	220.00 EUR	1 CTR	302.17 USD
FREIGHT	2985.00 USD	1 CTR	2985.00 USD

TOTAL 3,651.53 USD
=====SUMMARY PER TARIFF CURRENCY
229.00 EUR
3,337.00 USDRATE OF EXCHANGE
1 EUR = 1.373494 USD

PAYMENT DATE: MAR. 18, 2014

FOR IMPORTS OR EXPORTS WITH NO CREDIT TERMS, RETURN THIS INVOICE WITH
YOUR REMITTANCE TO:*****
* HAPAG-LLOYD (AMERICA) INC. *
* 245 TOWNPARK DRIVE *
* SUITE 300 *
* KENNESAW, GA 30144 *

399 Hoes Lane
Piscataway, New Jersey 08854



PAGE 2 / 2

FOR EXPORTS WITH CREDIT TERMS, RETURN THIS INVOICE WITH YOUR REMITTANCE TO:

```
*****
* HAPAG-LLOYD (AMERICA) INC.
* LOCKBOX 532405
* 806 TYVOLA ROAD
* SUITE 108
* CHARLOTTE, NC 28217
* PLEASE INCLUDE ANY DISCREPANCIES
*****
```

*****IMPORTANT CUSTOMS CLEARANCE INFO*****
EFFECTIVE JUNE 8TH, 2009 HAPAG LLOYD AREA SOUTH EAST WILL COMMENCE
AUTOMATIC ISSUE OF "IT'S" TO INLAND DESTINATIONS MOVING VIA RAIL
IF AN "IT" IS NOT REQUIRED AND YOU WILL BE CLEARING THE CARGO AT THE
PORT YOU MUST SPECIFY THIS IN WRITING.
PLEASE SEND YOUR REQUESTS TO RNASEIMPORTS@HLAG.COM
THIS PROCEDURE IS NOW IN LINE WITH OTHER HAPAG LLOYD OFFICES

*****DELIVERY ORDER INFO*****
ALL DELIVERY ORDERS AND CORRESPONDENCE CAN BE SENT TO RNASEIMPORTS@HLA
FOR INTERMODAL SHIPMENTS, PLEASE SUBMIT ALL OCEAN FREIGHT,
GOVERNMENT HOLD CHARGES, CUSTOMS CLEARANCE AND DELIVERY ORDERS
48 HOURS PRIOR TO EXPIRATION OF FREETIME TO AVOID POTENTIAL
STORAGE/DEMURRAGE CHARGES.

PLEASE VISIT OUR WEBSITE AT WWW.HLAG.COM FOR IMPORT RELEASE AND
TRACKING INFORMATION

REFERENCES:
FOB FORWARDER (MTD) OCN00079063

SHIPPER: UTI, UNITED STATES, INC.
CHARLOTTE, NC, USA
3800 ARCO CORPORATION DRIVE
SUITE 550
CHARLOTTE, NC 28273
USA

All transports carried out by the Hapag-Lloyd AG are subject to its General Conditions of Transport (which are available on request) provided that the services are not covered by Bill of Lading or Sea Waybill.

**This invoice is issued on behalf of
Hapag-Lloyd AG
Ballindamm 25 - D-20095 Hamburg**